W012320-031126 - California Public Records Request

Message History (8)

On 3/26/2026 6:36:01 PM, Brian C wrote:

TO: "San Mateo Public Records Center"[sanmateoca@mycusthelp.net]
Captain Maravillas,
Thank you for the update, and I understand records are being released on a rolling basis.
I want to flag that my latest message was a reply to Ms. O'Keefe's earlier response, which denied several items on the basis that the department cannot create records. My reply offered alternative paths — particularly for Items 2 and 3 — that wouldn't require creating anything, such as existing Flock platform exports and aggregate data the system already generates.
I'd appreciate it if each item could be addressed individually when the rolling responses continue, particularly where the response differs from "no responsive records." The request specifically asked for separate responses per item with legal bases for any denials.
Happy to discuss by phone if it would be helpful to walk through the context.
-brian

On Thursday, Mar 26, 2026 at 5:17 PM, San Mateo Public Records Center wrote:

On 3/26/2026 5:17:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012320-031126
Body:
RE: PUBLIC RECORDS REQUEST of March 11, 2026, **Reference # W012320-031126**

Dear Brian C,

The City received the following records request from you on March 11, 2026.

Pursuant to the California Public Records Act (Gov. Code § 6250 et seq.), I request the following records related to ALPR search activity compliance and audit obligations under SMPD Standard Operating Procedure 205.

For context: SOP 205 has required quarterly operator audits on the Flock Safety platform since at least October 25, 2019, and Flock-specific end-user audits since February 10, 2021. These audits must review: operator usage and sign-on information; dates and times of access; entry of required search information by the End-User (case number, etc); and connection between searched data and listed justification. Audit results must be submitted to the Support Services Captain per SOP 205.5.1.

This request is specifically directed at search activity compliance — whether searches included required justification and whether that justification was audited per SOP 205's criteria. Prior PRA responses produced three audit memos (Lt. Casazza to Chief Barberini, covering November 2025, December 2025, and January 2026). Those memos review sharing configuration: user account counts, sharing settings, and whether out-of-state sharing is revoked. They do not address whether individual searches included the case number or

justification required by SOP 205's end-user audit criteria. Re-production of those sharing configuration memos would not be responsive to this request.

I am not requesting the content of any search query, license plates searched, results of any search, or any information that would identify the subject of an investigation. I am requesting only aggregate compliance metadata and audit records.

Item 1. SOP 205 quarterly search activity audit records. All quarterly audit memoranda, reports, or other documentation that reviewed search activity compliance on the Flock Safety platform, produced pursuant to SOP 205. Specifically:

(a) All quarterly end-user audit records verifying search justification compliance (case number entry, connection between searched data and stated justification). SOP 205 has required these since at least February 10, 2021.

(b) All quarterly operator audit records for the Flock Safety platform. SOP 205 has required these since at least October 25, 2019.

(c) All records of audit results submitted to the Support Services Captain per SOP 205.5.1, or any alternate recipient such as the ALPR Committee Captain or the Chief of Police.

(d) The date ranges in this request are based on the understanding that the first Flock Safety devices became operational on or about November 12, 2022 (per INV-10888). If any Flock-related audit records, search activity, or platform data exists from prior to that date, please include those records and indicate the earliest date of Flock activity.

I request all such records from November 2022 through the date of this request. If no quarterly search activity audits have ever been conducted under SOP 205, I request confirmation of that fact, including the total number of quarterly audit cycles that have elapsed without a documented search activity audit.

Item 2. Aggregate search compliance data. Search activity compliance data from the Flock Safety platform, from November 2022 through the date of this request. For quarters where audit records exist per Item 1 and contain the quantified data described below, those audits are sufficient. For quarters where audit records exist but contain only narrative summaries without underlying counts, I request the platform data that was reviewed as part of those audits. For quarters where no audit records are available, I request this data exported from the Flock platform at whatever granularity it supports (monthly or quarterly).

To be clear: the data requested below consists of aggregate counts and compliance metadata — not the substance of any search, the plates queried, or the results returned. Aggregate counts of whether a justification field was populated do not reveal the subject of any investigation.

Specifically:

(a) Total number of ALPR searches conducted, broken out by: (i) searches by SMPD personnel; and (ii) searches by external agency personnel accessing SMPD data through Flock's network sharing or direct sharing features.

(b) For each category in (a): the count of searches where a case number, incident number, or warrant number was entered, and the count where no such identifier was entered.

(c) For each category in (a): the count of searches where the connection between the searched data and the listed justification was verified, and the count where it was not — per SOP 205's "Connection between searched data and listed justification for the search" audit criterion.

(d) All records of searches flagged, identified, or documented as non-compliant — whether for missing justification, invalid or unverifiable case/incident numbers, or failure to demonstrate a connection between the searched data and the listed justification. If no responsive records exist, please indicate whether this means (i) searches were reviewed and none were found to be non-compliant, or (ii) no review of individual search compliance has been conducted.

(e) For any flagged entries in (d): records of the corrective actions taken, including notifications to the searching user or agency, referrals for disciplinary review, or changes to system access.

Item 3. External agency search activity. Records identifying which external agencies have conducted searches against SMPD's ALPR data since November 2022, including agencies that may have had access during part of this period but are no longer on the current access list. Specifically:

(a) The name of each agency that has conducted one or more searches against SMPD's Flock data since November 2022.

(b) The total number of searches conducted by each such agency.

I am not requesting the substance of any search — only agency names and aggregate counts. If records are not available for the full period, I request whatever date range is available together with a statement of the earliest date for which records exist.

I request responsive records in their native electronic format (e.g., CSV or Excel exports from Flock Safety's audit dashboard, PDF for memoranda). If any portion of this request is denied, please respond to that item separately, state the specific legal basis for the denial, and continue processing the remaining items.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. At this time there are no responsive records to your request. If any responsive records are located, we will further respond to your request with updates no later than 4/11/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 3/24/2026 5:03:01 PM, Brian C wrote:

TO: "San Mateo Public Records Center"[sanmateoca@mycusthelp.net]
Kelly,

Thank you for the itemized response. I have follow-ups on several items.

Item 1(a) — End-user audit records: Denied as records of investigation (§ 7923.600) and ALPR information (§ 1798.90.55(b)). Access logs are administrative records documenting system usage — not "information or data collected through the use of an ALPR system" as defined in § 1798.90.5(b). The California Supreme Court in ACLU v. Superior Court (2017) 3 Cal.5th 1032 held that ALPR data collected through mass scanning is not exempt as records of investigation because it "is not conducted as part of a targeted inquiry into any particular crime." Administrative logs of who accessed the system are further removed from any investigation than the scan data the court addressed. Government Code § 7922.525 requires disclosure of reasonably segregable non-exempt portions. I request the access logs the department confirmed on March 5, 2026 it maintains through Flock, with the following fields redacted: license plate numbers or vehicle descriptions searched, search results returned, and any information identifying the subject of an investigation. The remaining fields — date/time, username, agency affiliation, and whether a case number was entered — cannot identify any vehicle, person, or investigation.

Item 1(b)–(d) — Operator audit records and audit results: Response states all audit records were provided via W012129-020926. Those records are three sharing configuration memos reviewing user counts and sharing settings. My request specifically noted that sharing configuration memos would not be responsive to a request for search activity audit records. These memos also do not appear to satisfy the department's own Policy 463.10 audit requirements, which call for monthly internal audits and quarterly external audits — not solely a review of sharing toggles. Can you confirm that no audit records exist beyond the three Casazza memos previously produced?

Item 2(a)–(c) — Aggregate search counts: Denied as not an existing record. Flock's platform maintains search audit logs with fields including date, time, username, case number, and offense type. An export of these logs is an existing record — not a new compilation. Aggregate counts derived from these logs are not "information or data collected through the use of an ALPR system" under § 1798.90.5(b). They are administrative metadata about system usage that cannot identify any vehicle, person, or investigation. The California State Auditor

published equivalent aggregate ALPR statistics in Report 2019-118 — if this data were ALPR information, that publication would have violated § 1798.90.55(b). I am willing to accept the raw search audit log export with plate numbers and search results redacted per § 7922.525.

Item 2(d)–(e) — Non-compliant searches and corrective actions: Noted that responsive emails may exist and will be provided on rolling basis. Thank you — I look forward to receiving those.

Item 3(a) — Names of agencies that searched SMPD data: Denied as records of investigation (§ 7923.600) and ALPR information (§ 1798.90.55(b)). An agency name is not "information or data collected through the use of an ALPR system" under § 1798.90.5(b). It does not reveal the subject, target, or substance of any investigation. The department already publicly discloses which agencies have access through the Flock transparency portal. The names of agencies that have used that access are no more sensitive. The ACLU v. Superior Court holding that mass-scanned ALPR data is not investigative applies with even greater force to a list of agency names. I would accept a log containing only agency names with all other fields redacted.

Item 3(b) — Search counts by agency: Denied as not an existing record. As with Item 2, I am willing to accept a raw search audit log export with plate numbers, search results, and dates redacted per § 7922.525. Even a log containing only agency name and whether a case number was entered would satisfy this request without requiring the department to compile a new record. These fields are administrative metadata, not ALPR information under § 1798.90.5(b), and cannot reveal the subject, target, or substance of any investigation.

-brian

On 2026-03-17 13:59, San Mateo Public Records Center wrote:
> --- Please respond above this line ---
>
> Item 1. SOP 205 quarterly search activity audit records. All quarterly
> audit memoranda, reports, or other documentation that reviewed search
> activity compliance on the Flock Safety platform, produced pursuant to
> SOP 205. Specifically:
>
> (a) All quarterly end-user audit records verifying search
> justification compliance (case number entry, connection between
> searched data and stated justification). SOP 205 has required these
> since at least February 10, 2021.
>
> This data constitutes records of investigation and/or intelligence and

> therefore is exempt from release under Cal. Government Code section
> 7923.600. In addition, your request has been denied pursuant to
> Government Code 7927.705, as records prohibited from disclosure under
> federal or state law. In this case, Civil Code section 1798.90.55,
> subdivision (b) prohibits a public agency from selling, sharing, or
> transferring ALPR information, except to another public agency, and
> only as otherwise permitted by law.
>
> (b) All quarterly operator audit records for the Flock Safety
> platform. SOP 205 has required these since at least October 25, 2019.
>
> All audit records maintained by the Department were
> provided to you at your request #W012129-020926.
>
> (c) All records of audit results submitted to the Support Services
> Captain per SOP 205.5.1, or any alternate recipient such as the ALPR
> Committee Captain or the Chief of Police.
>
> All audit records maintained by the Department were
> provided to you at your request #W012129-020926.
>
> (d) The date ranges in this request are based on the understanding
> that the first Flock Safety devices became operational on or about
> November 12, 2022 (per INV-10888). If any Flock-related audit records,
> search activity, or platform data exists from prior to that date,
> please include those records and indicate the earliest date of Flock
> activity.
>
> All audit records maintained by the Department were provided to you at
> your request #W012129-020926.
>
> I request all such records from November 2022 through the date of this
> request. If no quarterly search activity audits have ever been
> conducted under SOP 205, I request confirmation of that fact,
> including the total number of quarterly audit cycles that have elapsed
> without a documented search activity audit.
>
> Item 2. Aggregate search compliance data. Search activity compliance
> data from the Flock Safety platform, from November 2022 through the
> date of this request. For quarters where audit records exist per Item
> 1 and contain the quantified data described below, those audits are
> sufficient. For quarters where audit records exist but contain only
> narrative summaries without underlying counts, I request the platform
> data that was reviewed as part of those audits. For quarters where no
> audit records are available, I request this data exported from the
> Flock platform at whatever granularity it supports (monthly or

> quarterly).
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> To be clear: the data requested below consists of aggregate counts and
> compliance metadata -- not the substance of any search, the plates
> queried, or the results returned. Aggregate counts of whether a
> justification field was populated do not reveal the subject of any
> investigation.
>
> Specifically:
>
> (a) Total number of ALPR searches conducted, broken out by: (i)
> searches by SMPD personnel; and (ii) searches by external agency
> personnel accessing SMPD data through Flock's network sharing or
> direct sharing features.
>
> The California Public Records Act requires disclosure of existing
> identifiable records only and does not require an agency to create a
> new record, compile information, or answer questions in response to a
> request. The report you seek does not exist as a record maintained by
> the Department or within the Flock platform.
>
> (b) For each category in (a): the count of searches where a case
> number, incident number, or warrant number was entered, and the count
> where no such identifier was entered.
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> The California Public Records Act requires disclosure of existing
> identifiable records only and does not require an agency to create a
> new record, compile information, or answer questions in response to a
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> the Department or within the Flock platform.
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> (c) For each category in (a): the count of searches where the
> connection between the searched data and the listed justification was
> verified, and the count where it was not -- per SOP 205's "Connection
> between searched data and listed justification for the search" audit
> criterion.
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> The California Public Records Act requires disclosure of existing
> identifiable records only and does not require an agency to create a
> new record, compile information, or answer questions in response to a
> request. The report you seek does not exist as a record maintained by
> the Department or within the Flock platform.
>
> (d) All records of searches flagged, identified, or documented as
> non-compliant -- whether for missing justification, invalid or
> unverifiable case/incident numbers, or failure to demonstrate a

> connection between the searched data and the listed justification. If
> no responsive records exist, please indicate whether this means (i)
> searches were reviewed and none were found to be non-compliant, or
> (ii) no review of individual search compliance has been conducted.
>
> There may be responsive emails associated with this request. This will
> take an extensive amount of time to search and will be provided on a
> rolling basis.
>
> (e) For any flagged entries in (d): records of the corrective actions
> taken, including notifications to the searching user or agency,
> referrals for disciplinary review, or changes to system access.
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> There may be responsive emails associated with this request. This will
> take an extensive amount of time to search and will be provided on a
> rolling basis.
>
> Item 3. External agency search activity. Records identifying which
> external agencies have conducted searches against SMPD's ALPR data
> since November 2022, including agencies that may have had access
> during part of this period but are no longer on the current access
> list. Specifically:
>
> (a) The name of each agency that has conducted one or more searches
> against SMPD's Flock data since November 2022.
>
> This data constitutes records of investigation and/or intelligence and
> therefore is exempt from release under Cal. Government Code section
> 7923.600. In addition, your request has been denied pursuant to
> Government Code 7927.705, as records prohibited from disclosure under
> federal or state law. In this case, Civil Code section 1798.90.55,
> subdivision (b) prohibits a public agency from selling, sharing, or
> transferring ALPR information, except to another public agency, and
> only as otherwise permitted by law.
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> (b) The total number of searches conducted by each such agency.
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> identifiable records only and does not require an agency to create a
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> the Department or within the Flock platform.
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> and aggregate counts. If records are not available for the full
> period, I request whatever date range is available together with a

> statement of the earliest date for which records exist.
>
> I request responsive records in their native electronic format (e.g.,
> CSV or Excel exports from Flock Safety's audit dashboard, PDF for
> memoranda). If any portion of this request is denied, please respond
> to that item separately, state the specific legal basis for the
> denial, and continue processing the remaining items.
>
> ----------
> To monitor the progress or update this request please log into the San
> Mateo Records Center [1].
>
> Links:
> ------
> [1]
> https://u8387795.ct.sendgrid.net/ls/click?upn=u001.PYICgxP3kfgZjR-2B4e9nPlJM-2F-2FZJ6ZuXV20aaQ-2Fm9oT0GfuwVQ0XY4Zf8DzO14DT34P-2FrJZViiJ9beoziTjTVsJPcEOKnDPKoBcAfcb16LMI65DcKk3RuCVXuiirQxA6lMIy3_OGUZgrfogYMGF60AX8yLzZOPgwby8iyRR8-2BL5B07Rjzf-2FAP5QHVlZw5aa1pORP4xFB6XCGdr-2FoUNRrs06rwSlLWMW53QhfHUmVJxs1cbiCkRyDpmQkfvNvXYxPWtQGcQhjrxAst82jzR0KPWtAkVtSQ7NvrZDYZWha-2Bw-2BNc-2FQ1Dwxt36uoJgEWvIEXvVRAezlDJJ3bRd9ELhhYtCgm9tcfErumcDVRRq2SSeCIxFQs45n8p2m8ba7RcE0qSLRAWnFy0TnLvBP-2BWjUOZcpRHTj6u2S3hPmQ71a8076c3ph5ALRHqXFAV-2FmPr3XcupWldXYUyRzrBdt8BFLA33ReC-2BF9mIboKMt-2B9nClq5JVNZ-2BLw-3D

On 3/17/2026 1:59:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012320-031126
Body:

Item 1. SOP 205 quarterly search activity audit records. All quarterly audit memoranda, reports, or other documentation that reviewed search activity compliance on the Flock Safety platform, produced pursuant to SOP 205. Specifically:

(a) All quarterly end-user audit records verifying search justification compliance (case number entry, connection between searched data and stated justification). SOP 205 has required these since at least February 10, 2021.

This data constitutes records of investigation and/or intelligence and therefore is exempt from release under Cal. Government Code section 7923.600. In addition, your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

(b) All quarterly operator audit records for the Flock Safety platform. SOP 205 has required these since at least

October 25, 2019.

All audit records maintained by the Department were provided to you at your request #W012129-020926.

(c) All records of audit results submitted to the Support Services Captain per SOP 205.5.1, or any alternate recipient such as the ALPR Committee Captain or the Chief of Police.

All audit records maintained by the Department were provided to you at your request #W012129-020926.

(d) The date ranges in this request are based on the understanding that the first Flock Safety devices became operational on or about November 12, 2022 (per INV-10888). If any Flock-related audit records, search activity, or platform data exists from prior to that date, please include those records and indicate the earliest date of Flock activity.

All audit records maintained by the Department were provided to you at your request #W012129-020926.

I request all such records from November 2022 through the date of this request. If no quarterly search activity audits have ever been conducted under SOP 205, I request confirmation of that fact, including the total number of quarterly audit cycles that have elapsed without a documented search activity audit.

Item 2. Aggregate search compliance data. Search activity compliance data from the Flock Safety platform, from November 2022 through the date of this request. For quarters where audit records exist per Item 1 and contain the quantified data described below, those audits are sufficient. For quarters where audit records exist but contain only narrative summaries without underlying counts, I request the platform data that was reviewed as part of those audits. For quarters where no audit records are available, I request this data exported from the Flock platform at whatever granularity it supports (monthly or quarterly).

To be clear: the data requested below consists of aggregate counts and compliance metadata — not the substance of any search, the plates queried, or the results returned. Aggregate counts of whether a justification field was populated do not reveal the subject of any investigation.

Specifically:

(a) Total number of ALPR searches conducted, broken out by: (i) searches by SMPD personnel; and (ii) searches by external agency personnel accessing SMPD data through Flock's network sharing or direct sharing features.

The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency

to create a new record, compile information, or answer questions in response to a request. The report you seek does not exist as a record maintained by the Department or within the Flock platform.

(b) For each category in (a): the count of searches where a case number, incident number, or warrant number was entered, and the count where no such identifier was entered.

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(c) For each category in (a): the count of searches where the connection between the searched data and the listed justification was verified, and the count where it was not — per SOP 205's "Connection between searched data and listed justification for the search" audit criterion.

The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record, compile information, or answer questions in response to a request. The report you seek does not exist as a record maintained by the Department or within the Flock platform.

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There may be responsive emails associated with this request. This will take an extensive amount of time to search and will be provided on a rolling basis.

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On 3/14/2026 6:27:02 PM, Brian C wrote:

TO: "San Mateo Public Records Center"[sanmateoca@mycusthelp.net]
Kelly,

Thank you for the response. I have a few questions about the exemptions cited.

Regarding § 7923.600 (investigation records): In ACLU Foundation of Southern California v. Superior Court (2017) 3 Cal.5th 1032, the California Supreme Court held that ALPR data collected through mass scanning is not exempt as "records of investigations" because it "is not conducted as part of a targeted inquiry into any particular crime." If raw plate data doesn't qualify as investigation records, aggregate counts of whether searches included case numbers cannot either.

Regarding § 1798.90.55(b): "ALPR information" is defined in § 1798.90.5(b) as "information or data collected through the use of an ALPR system." Aggregate search counts and compliance rates are administrative metadata about how humans accessed the system — not data collected by cameras. The California State Auditor — bound by the same statute — published equivalent aggregate ALPR statistics in Report 2019-118. If this data were "ALPR information," that publication would have violated § 1798.90.55(b).

I'd also note that the PRA requires specific statutory justification for each item denied (Gov. Code § 7922.000(a)). My request contained three items with multiple sub-items. The response applied both exemptions as a blanket across all items. Could you identify which exemption applies to which item?

-brian

On 2026-03-13 13:08, San Mateo Public Records Center wrote:
> --- Please respond above this line ---
>
> RE: PUBLIC RECORDS REQUEST of March 11, 2026, Reference #
> W012320-031126
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> individual searches included the case number or justification required
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> configuration memos would not be responsive to this request.
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> narrative summaries without underlying counts, I request the platform
> data that was reviewed as part of those audits. For quarters where no
> audit records are available, I request this data exported from the
> Flock platform at whatever granularity it supports (monthly or
> quarterly).
>
> To be clear: the data requested below consists of aggregate counts and
> compliance metadata -- not the substance of any search, the plates

> queried, or the results returned. Aggregate counts of whether a
> justification field was populated do not reveal the subject of any
> investigation.
>
> Specifically:
>
> (a) Total number of ALPR searches conducted, broken out by: (i)
> searches by SMPD personnel; and (ii) searches by external agency
> personnel accessing SMPD data through Flock's network sharing or
> direct sharing features.
>
> (b) For each category in (a): the count of searches where a case
> number, incident number, or warrant number was entered, and the count
> where no such identifier was entered.
>
> (c) For each category in (a): the count of searches where the
> connection between the searched data and the listed justification was
> verified, and the count where it was not -- per SOP 205's "Connection
> between searched data and listed justification for the search" audit
> criterion.
>
> (d) All records of searches flagged, identified, or documented as
> non-compliant -- whether for missing justification, invalid or
> unverifiable case/incident numbers, or failure to demonstrate a
> connection between the searched data and the listed justification. If
> no responsive records exist, please indicate whether this means (i)
> searches were reviewed and none were found to be non-compliant, or
> (ii) no review of individual search compliance has been conducted.
>
> (e) For any flagged entries in (d): records of the corrective actions
> taken, including notifications to the searching user or agency,
> referrals for disciplinary review, or changes to system access.
>
> Item 3. External agency search activity. Records identifying which
> external agencies have conducted searches against SMPD's ALPR data
> since November 2022, including agencies that may have had access
> during part of this period but are no longer on the current access
> list. Specifically:
>
> (a) The name of each agency that has conducted one or more searches
> against SMPD's Flock data since November 2022.
>
> (b) The total number of searches conducted by each such agency.
>
> I am not requesting the substance of any search -- only agency names
> and aggregate counts. If records are not available for the full

> period, I request whatever date range is available together with a
> statement of the earliest date for which records exist.
>
> I request responsive records in their native electronic format (e.g.,
> CSV or Excel exports from Flock Safety's audit dashboard, PDF for
> memoranda). If any portion of this request is denied, please respond
> to that item separately, state the specific legal basis for the
> denial, and continue processing the remaining items.
> _ _
> A good faith and diligent search yielded no records responsive to your
> request for aggregate data. All audit
> records maintained by the Department were provided to you in your
> request #W012129-020926. All other requests are exempt from release
> under the following exemptions:
>
> Cal. Government Code section 7923.600. because they are considered a
> record of investigation or intelligence with the San Mateo Police
> Department. Section 7923.600 provides that public agencies need not
> disclose records of investigations conducted by police agencies.
>
> In addition, your request has been denied pursuant to Government Code
> 7927.705, as records prohibited from disclosure under federal or state
> law. In this case, Civil Code section 1798.90.55, subdivision (b)
> prohibits a public agency from selling, sharing, or transferring ALPR
> information, except to another public agency, and only as otherwise
> permitted by law.
>
> If you have any questions, please contact me using the below contact
> information.
> Sincerely,
>
> Kelly O'Keefe
> Police Technical Services Administrator
> Police
> Kokeefe@cityofsanmateo.org
>
> ----------
> To monitor the progress or update this request please log into the San
> Mateo Records Center [1].
>
> Links:
> ------
> [1]
> https://u8387795.ct.sendgrid.net/ls/click?upn=u001.PYICgxP3kfgZjR-2B4e9nPlJM-2F-2FZJ6ZuXV20aaQ-2Fm9oT0GfuwVQ0XY4Zf8DzO14DT34P-2FrJZViiJ9beoziTjTVsJPcEOKnDPKoBcAfcb16LMI65DcKk3RuCVXuiirQxA6lr7uh_OGUZgrfogYMGF60

AX8yLzZOPgwby8iyRR8-2BL5B07Rjzf-2FAP5QHVlZw5aa1pORP4x-2FChiz62O5J3234hmyvZjN-2B28B33uo3DhQJbRK9ell7o3hMOZWQuGON8qhwqwDam2hRzr8n7ui9xQ8Xm2-2F9cyxtWIN1bbDQY7fesE21SwtCIlooBoZbMRJFxyTnRodXCp4LB4fMLbEL9e1XCbz-2FVgmaZ7oebMmogmW-2BUzQcbtTxduMo4gmK2GVC2p2rdRGLBLfiHTjKR4t8tzmDd7CNKBTUIv5GE9sdkXBzHJp1zSNn8nDc1EzDSL1EIHTjHyKSexbhk-2FPDt71-2Fin345Snrs4Z6TmMebZE-2BL2o3Eayl-2BawwA-3D

On 3/13/2026 1:08:01 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012320-031126
Body:
RE: PUBLIC RECORDS REQUEST of March 11, 2026, **Reference # W012320-031126**

Dear Brian C,

The City received the following records request on March 11, 2026.

Pursuant to the California Public Records Act (Gov. Code § 6250 et seq.), I request the following records related to ALPR search activity compliance and audit obligations under SMPD Standard Operating Procedure 205.

For context: SOP 205 has required quarterly operator audits on the Flock Safety platform since at least October 25, 2019, and Flock-specific end-user audits since February 10, 2021. These audits must review: operator usage and sign-on information; dates and times of access; entry of required search information by the End-User (case number, etc); and connection between searched data and listed justification. Audit results must be submitted to the Support Services Captain per SOP 205.5.1.

This request is specifically directed at search activity compliance — whether searches included required justification and whether that justification was audited per SOP 205's criteria. Prior PRA responses produced three audit memos (Lt. Casazza to Chief Barberini, covering November 2025, December 2025, and January 2026). Those memos review sharing configuration: user account counts, sharing settings, and whether out-of-state sharing is revoked. They do not address whether individual searches included the case number or justification required by SOP 205's end-user audit criteria. Re-production of those sharing configuration memos would not be responsive to this request.

I am not requesting the content of any search query, license plates searched, results of any search, or any information that would identify the subject of an investigation. I am requesting only aggregate compliance metadata and audit records.

Item 1. SOP 205 quarterly search activity audit records. All quarterly audit memoranda, reports, or other documentation that reviewed search activity compliance on the Flock Safety platform, produced pursuant to SOP 205. Specifically:

(a) All quarterly end-user audit records verifying search justification compliance (case number entry, connection between searched data and stated justification). SOP 205 has required these since at least February 10, 2021.

(b) All quarterly operator audit records for the Flock Safety platform. SOP 205 has required these since at least October 25, 2019.

(c) All records of audit results submitted to the Support Services Captain per SOP 205.5.1, or any alternate recipient such as the ALPR Committee Captain or the Chief of Police.

(d) The date ranges in this request are based on the understanding that the first Flock Safety devices became operational on or about November 12, 2022 (per INV-10888). If any Flock-related audit records, search activity, or platform data exists from prior to that date, please include those records and indicate the earliest date of Flock activity.

I request all such records from November 2022 through the date of this request. If no quarterly search activity audits have ever been conducted under SOP 205, I request confirmation of that fact, including the total number of quarterly audit cycles that have elapsed without a documented search activity audit.

Item 2. Aggregate search compliance data. Search activity compliance data from the Flock Safety platform, from November 2022 through the date of this request. For quarters where audit records exist per Item 1 and contain the quantified data described below, those audits are sufficient. For quarters where audit records exist but contain only narrative summaries without underlying counts, I request the platform data that was reviewed as part of those audits. For quarters where no audit records are available, I request this data exported from the Flock platform at whatever granularity it supports (monthly or quarterly).

To be clear: the data requested below consists of aggregate counts and compliance metadata — not the substance of any search, the plates queried, or the results returned. Aggregate counts of whether a justification field was populated do not reveal the subject of any investigation.

Specifically:

(a) Total number of ALPR searches conducted, broken out by: (i) searches by SMPD personnel; and (ii) searches by external agency personnel accessing SMPD data through Flock's network sharing or direct sharing features.

(b) For each category in (a): the count of searches where a case number, incident number, or warrant number was entered, and the count where no such identifier was entered.

(c) For each category in (a): the count of searches where the connection between the searched data and the listed justification was verified, and the count where it was not — per SOP 205's "Connection between searched data and listed justification for the search" audit criterion.

(d) All records of searches flagged, identified, or documented as non-compliant — whether for missing justification, invalid or unverifiable case/incident numbers, or failure to demonstrate a connection between the searched data and the listed justification. If no responsive records exist, please indicate whether this means (i) searches were reviewed and none were found to be non-compliant, or (ii) no review of individual search compliance has been conducted.

(e) For any flagged entries in (d): records of the corrective actions taken, including notifications to the searching user or agency, referrals for disciplinary review, or changes to system access.

Item 3. External agency search activity. Records identifying which external agencies have conducted searches against SMPD's ALPR data since November 2022, including agencies that may have had access during part of this period but are no longer on the current access list. Specifically:

(a) The name of each agency that has conducted one or more searches against SMPD's Flock data since November 2022.

(b) The total number of searches conducted by each such agency.

I am not requesting the substance of any search — only agency names and aggregate counts. If records are not available for the full period, I request whatever date range is available together with a statement of the earliest date for which records exist.

I request responsive records in their native electronic format (e.g., CSV or Excel exports from Flock Safety's audit dashboard, PDF for memoranda). If any portion of this request is denied, please respond to that item separately, state the specific legal basis for the denial, and continue processing the remaining items.

A good faith and diligent search yielded no records responsive to your request for aggregate data. All audit records maintained by the Department were provided to you in your request #W012129-020926. All other requests are exempt from release under the following exemptions:

Cal. Government Code section 7923.600. because they are considered a record of investigation or intelligence with the San Mateo Police Department. Section 7923.600 provides that public agencies need not disclose records of investigations conducted by police agencies.

In addition, your request has been denied pursuant to Government Code 7927.705, as records prohibited from disclosure under federal or state law. In this case, Civil Code section 1798.90.55, subdivision (b) prohibits a public agency from selling, sharing, or transferring ALPR information, except to another public agency, and only as otherwise permitted by law.

If you have any questions, please contact me using the below contact information.
Sincerely,

Kelly O'Keefe
Police Technical Services Administrator
Police
Kokeefe@cityofsanmateo.org

On 3/11/2026 11:50:30 AM, Brian C wrote:

Request Created on Public Portal

On 3/11/2026 11:50:29 AM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 3/11/2026 and given the reference number **W012320-031126** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 6250 et seq.), I request the following records related to ALPR search activity compliance and audit obligations under SMPD Standard Operating Procedure 205.**

For context: SOP 205 has required quarterly operator audits on the Flock Safety platform since at least October 25, 2019, and Flock-specific end-user audits since February 10, 2021. These audits must review: operator usage and sign-on information; dates and times of access; entry of required search information by the End-User (case number, etc); and connection between searched data and listed justification. Audit results must be submitted to the Support Services Captain per SOP 205.5.1.

This request is specifically directed at search activity compliance — whether searches included required justification and whether that justification was audited per SOP 205's criteria. Prior PRA responses produced three audit memos (Lt. Casazza to Chief Barberini, covering November 2025, December 2025, and January 2026). Those memos review sharing configuration: user account counts, sharing settings, and whether out-of-state sharing is revoked. They do not address whether individual searches included the case number or justification required by SOP 205's end-user audit criteria. Re-production of those sharing configuration memos would not be responsive to this request.

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(d) The date ranges in this request are based on the understanding that the first Flock Safety devices became operational on or about November 12, 2022 (per INV-10888). If any Flock-related audit records, search activity, or platform data exists from prior to that date, please include those records and indicate the earliest date of Flock activity.

I request all such records from November 2022 through the date of this request. If no quarterly search activity audits have ever been conducted under SOP 205, I request confirmation of that fact, including the total number of quarterly audit cycles that have elapsed without a documented search activity audit.

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(c) For each category in (a): the count of searches where the connection between the searched data and the listed justification was verified, and the count where it was not — per SOP 205's "Connection between searched data and listed justification for the search" audit criterion.

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between the searched data and the listed justification. If no responsive records exist, please indicate whether this means (i) searches were reviewed and none were found to be non-compliant, or (ii) no review of individual search compliance has been conducted.

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I request responsive records in their native electronic format (e.g., CSV or Excel exports from Flock Safety's audit dashboard, PDF for memoranda). If any portion of this request is denied, please respond to that item separately, state the specific legal basis for the denial, and continue processing the remaining items.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.